

BEFORE THE IOWA BOARD OF SOCIAL WORK

RE: Social Work Independent Level License of PATRICIA GILBAUGH License No. 06342 Respondent	CASE NO. 16-0291 COMBINED STATEMENT OF CHARGES, SETTLEMENT AGREEMENT, AND FINAL ORDER
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COME NOW the Iowa Board of Social Work ("Board") and Patricia Gilbaugh ("Respondent"), 202 7th Street, Van Horne IA, 52346, and enter into this Combined Statement of Charges, Settlement Agreement, and Final Order ("Order") pursuant to Iowa Code sections 17A.10 and 272C.3(4), and 645 IAC chapter 12. The Board has jurisdiction over Respondent and the subject matter of this case pursuant to Iowa Code chapters 17A, 147, 154C, and 272C, and 645 IAC chapter 283.

A. STATEMENT OF CHARGES

COUNT I

1. Respondent is charged with engaging in a dual relationship with a client in violation of 645 IAC 282.2(8)"a"(1), and may be disciplined pursuant to Iowa Code section 147.55(9) and 645 IAC 283.2(12).

COUNT II

2. Respondent is charged with continuing in a professional relationship with a client when the licensee has become emotionally involved with the client to the extent that objectivity is no longer possible in providing the required professional services in violation of 645 IAC 282.2(8)"b"(2), and may be disciplined pursuant to Iowa Code section 147.55(9) and 645 IAC 283.2(12).

COUNT III

3. Respondent is charged with professional incompetency, and may be disciplined pursuant to Iowa Code section 147.55(2) and 645 IAC 283.2(2).

B. FACTUAL CIRCUMSTANCES

4. Respondent holds Iowa license number 06342 to practice social work at the independent level, which is currently active through December 31, 2018.

5. Respondent provided therapy to a client from approximately November 2015 to July 2016.

6. Respondent frequently communicated with the client over email outside of sessions.

7. Respondent shared personal information with the client.

8. Respondent gave and received gifts from the client on multiple occasions.
9. Respondent did not handle the client's case with the degree of care which is ordinarily exercised by the average social worker acting in the same or similar circumstances.

C. SETTLEMENT AGREEMENT AND FINAL ORDER

10. The Board has jurisdiction over the parties and the subject matter of these proceedings.
11. Respondent acknowledges that the allegations in the Statement of Charges, if proven in a contested case hearing, would constitute grounds for the discipline agreed to in this Order. In response to the allegations, Respondent asserts she was undergoing a number of personal and professional stressors during the time she provided services to the client.
12. Execution of this Order constitutes the resolution of a contested case. Respondent has a right to hearing before the Board on the charges, but Respondent waives the right to hearing and all attendant rights, including the right to appeal or seek judicial review of the Board's action, by freely and voluntarily entering into this Order. Once entered, this Order shall have the force and effect of a disciplinary order entered following a contested case hearing.
13. Respondent acknowledges that she has the right to be represented by counsel on this matter.
14. Respondent agrees that the State's counsel may present this Order to the Board and may have *ex parte* communications with the Board while presenting it.
15. This Order is subject to approval by a majority of the full Board. If the Board does not approve this Order, it shall be of no force or effect to either party, and shall not be admissible for any purpose in further proceedings in this matter. If the Board approves this Order, it shall be the full and final resolution of this matter.
16. This Order shall be part of Respondent's permanent record and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.
17. This Order shall not be binding as to any new complaints received by the Board.
18. Respondent understands the Board is required by federal law to report any adverse action to the National Practitioner Data Bank.
19. This Order, when fully executed, is a public record and is available for inspection and copying in accordance with the requirements of Iowa Code chapters 22 and 272C.
20. The Board's approval of this Order shall constitute a **FINAL ORDER** of the Board.

IT IS THEREFORE ORDERED:

21. Respondent's license shall be placed on **PROBATION** for a minimum period of two (2) years, subject to the following terms and conditions:

- a. Respondent shall complete two (2) years of monitored practice before being released from probation. Prior to beginning practice monitoring, Respondent shall submit a proposed practice monitor and practice monitoring plan to the Board for approval. The practice monitor should be an Iowa licensed independent level social work, or shall possess equivalent qualifications with Board approval. Practice monitoring shall commence upon Board approval of the monitor and the plan. Respondent shall provide the practice monitor with a copy of this Order. Respondent's practice monitor shall perform an initial review of Respondent's practice with the goal of identifying potential areas for improvement. After the initial review meeting, Respondent shall meet in a face-to-face setting with the practice monitor on a monthly basis during the probation period to review Respondent's caseload and clinical records. A minimum of twelve (12) meetings per year, in addition to the initial review meeting, is required. Respondent's practice monitor shall submit quarterly reports to the Board. Respondent is responsible for all costs associated with practice monitoring and for ensuring the quarterly reports are timely submitted by her practice monitor. Respondent may request a reduction in the frequency of required meetings after one (1) year. The Board retains sole discretion in deciding whether to reduce the frequency of required meetings.
- b. In the first year of probation, Respondent shall complete the Live 3 Day PBI Professional Boundaries Training Course-Essential Edition for Mental Health Professionals. These continuing education hours are in addition to the hours required for license renewal and cannot be used to satisfy the continuing education requirement of any license renewal. Respondent shall provide copies of all certificates of completion to the Board as proof of successful completion of this requirement. Respondent is responsible for all costs associated with obtaining the required continuing education. Respondent has voluntarily taken other ethics courses as a means of self-remediation.
- c. During the probationary period, Respondent shall notify all employers and prospective employers for any position that requires licensure as a social worker (no later than at the time of an employment interview) of this Order.
- d. Respondent shall appear before the Board upon request. Respondent shall be given reasonable notice of the date, time, and place for such appearances.

- e. Respondent shall follow the Professional Boundaries and Self-Care Policy she created as a means of self-remediation.
- f. Respondent shall provide written notification to the Board of any change of home address, telephone number, or place of employment within ten (10) days of such a change.
- g. Respondent shall comply with all laws and rules governing the practice of social work.
- h. All quarterly reports are due on January 5, April 5, July 5, and October 5 of each year during the probationary period. Any quarterly reports or other required notifications should be mailed to the Iowa Board of Social Work, Attn: Tony Alden, Bureau of Professional Licensure, Iowa Department of Public Health, Lucas State Office Building—5th Floor, 321 East 12th St., Des Moines, IA 50319, or emailed to Tony.Alden@idph.iowa.gov.

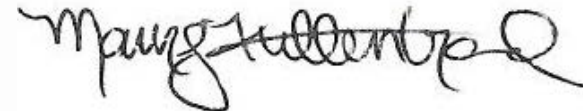
22. Should Respondent violate the terms of this Order, the Board may initiate action to impose other licensee discipline as authorized by Iowa Code chapters 147, 154C, and 272C and 645 IAC chapters 13 and 283.

This Combined Statement of Charges, Settlement Agreement, and Final Order is voluntarily submitted by Respondent to the Board for its consideration on the ____ day of _____, 2018.



PATRICIA GILBAUGH
Respondent

This Combined Statement of Charges, Settlement Agreement, and Final Order is approved by the Iowa Board of Social Work on the 14 day of May, 2018.



Chairperson
Iowa Board of Social Work

Copies to:

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